TUDOR GLEN PLACE LEASE

DATED: July 30, 2021

BETWEEN

H&A PROPERTIES LTD.

as Landlord

AND

CLINIC SOLUTIONS INC.

as Tenant

THIS INDENTURE MADE THE 30 DAY OF July, 2021

BETWEEN:

H&A PROPERTIES LTD.
(hereinafter called the "Landlord")

OF THE FIRST PART

- and –

CLINIC SOLUTIONS INC.
(hereinafter called the "Tenant")

OF THE SECOND PART

ARTICLE I – DEFINITIONS

1.1 "Common Areas and Facilities" means all that part of the "Shopping Centre" which is not designated by the Landlord for leasing to the tenants of the Shopping Centre, including without limitation, exterior walls, columns, posts, floors and roofs of all improvements; interior hallways; elevators, electrical systems and equipments; public address, intercom, music and alarm systems; heating, ventilating, air-conditioning, plumbing, drainage and other mechanical systems and equipment not located in the Leased Premises; décor, furnishings, fountains and features; administrative offices; maintenance offices; boiler and fan rooms; trash disposal facilities; garbage compaction equipment; automobile parking areas, driveways, entrances and exits thereto; the truckway or ways; loading docks; pedestrian sidewalks; landscaped areas; exterior stairways; fascia and pylon signs including their electrical components; general signs and information facilities together with all other lands, facilities, utilities, installations and equipment forming part of the Shopping Centre which are provided or designated from time to time by the Landlord for the use by or benefit of the Tenant, its employees, customers and other invitees in common with others entitled to use or benefit of such areas and facilities in the manner and for the purpose permitted by this Lease.

1.2 "Common Area Share" means the area expressed in square feet calculated by multiplying the area expressed in square feet of the Interior Common Areas by a ratio the numerator of which is the Floor Area of the Leased Premises and the denominator of which is the aggregate of all Floor Areas set aside by the Landlord for leasing to tenants of the Shopping Centre whether leased or not.

INITIALS	
LANDLORD	TENANT

1.3 "Cost of Maintenance and Operation of Common Areas and Facilities and the Shopping Centre" includes, without limitation:

(a) The total annual costs of insurance obtained by the Landlord for the Shopping Centre;
(b) Cleaning, including snow removal, parking lot maintenance including sweeping, striping and lamp standard maintenance, gardening and landscaping, management fees, signs and Common Area supervision;
(c) Common Area lighting, electricity, and utilities;
(d) The Cost to the Landlord of the rental of any equipment, and the cost of the supplies, and material and labour used by the Landlord in the operation or maintenance of the Common Areas and Facilities;
(e) Repairs and replacements to and maintenance and operation of the Shopping Centre, including the Common Areas, and Common Area machinery, equipment and apparatus.

1.4 "Gross Revenue" – INTENTIONALLY DELETED

1.5 "Hazardous Substance" means any contaminant, dangerous substance, noxious substance, hazardous waste, flammable, explosive, radioactive material, urea formaldehyde form insulation, asbestos, PCB's and any other substance or materials declared or defined to be hazardous or toxic contaminants in or pursuant to any applicable federal, provincial or municipal statute or by-law.

1.6 "Insurable Hazards" means fire and other perils for which insurance is available and which a reasonably prudent Landlord would obtain in similar circumstances.

1.7 "Interior Common Areas" means all that part of the Common Areas and Facilities which are located within the buildings forming part of the Shopping Centre.

1.8 "Lease Year" means a 12 month period commencing with the 1st day of January in one calendar year and ending on the last day of December in that calendar year; providing that the first Lease Year shall commence on the commencement date of the Term and end on the last day of December in the calendar year of the commencement date of the Term and last Lease Year shall end on the last day of the Term of this Lease and commence on the 1st day of January preceding that date.

1.9 "Proportionate Share" means a ratio the numerator of which is the Rentable Area of the Leased Premises and the denominator of which is the Rentable Area of the Shopping Centre. The Tenant's Proportionate Share as of the date of this Lease Agreement is 18.69%.

1.10 "Rentable Area of the Leased Premises" means the area of all floors and mezzanines (unless such mezzanine has been constructed by the Tenant and is used exclusively for storage) of all storeys in the Leased Premises, as certified by the Landlord's representative and calculated by measuring from the exterior surfaces of the exterior

INITIALS	
LANDLORD	TENANT

walls, including all walls adjoining Common Areas and Facilities, from the center line of party or demising walls separating two or more interior leasable premises and from the lease line separating any interior leasing premises from other areas in the Shopping Centre where no wall exists , all without deduction or exclusion for any space occupied by or used for columns, stairs, elevators, escalators or other interior construction or equipment or for any store from or doorway areas recessed from the lease line.

1.11 "Rentable Area of Shopping Centre" means the aggregate of all Rentable Areas set aside by the Landlord for leasing to tenants of the Shopping Centre whether leased or not (but excluding the area of any free standing gas bar on the Shopping Centre lands).

1.12 "Shopping Centre" means the lands and premises located in the City of St. Albert, in the province of Alberta, known as Tudor Glen Place as more particularly described in Schedule "A" hereto and as shown on the site plan attached hereto as Schedule "B", or as the boundaries of such lands may be varied from time to time, together with the buildings, improvements and facilities established as at the commencement of the term or subsequently added hereto from time to time.

ARTICLE II – GRANT

2.1 Leased Premises

Witnesseth that in consideration of the rents, covenants and agreements hereinafter reserved and contained on the part of the Tenant to be observed and performed, the Landlord demises and Leases to the Tenant, and the Tenant rents from the Landlord those certain premises, now or hereafter to be erected as part of the Shopping Centre, which premises consist of a Rentable Area of 1268sqft (unit #1002), 1287sqft (unit #1003), 1284sqft (unit #1004), 1607sqft (#1005) comprising a total of Five Thousand, Four Hundred and Forty Six (5446sqft) square feet more or less (hereinafter referred to as the "Leased Premises"). The boundaries and location of the Leased Premises are crosshatched on the site plan of the Shopping Centre which is marked as Schedule "B" attached hereto and municipally described as #1002, #1003, #1004, #1005 Tudor Glen Place, St. Albert, AB T8N 3V4. In addition, the Tenant shall be entitled, for the benefit of the Leased Premises, to use in common with others entitled thereto the Common Areas and Facilities.

2.2 Term

To have and to hold the Leased Premises for and during the term of Five (5) years (hereinafter referred to as the "Term") commencing on the 1st day of August, 2021 and expiring on the 31st day of July, 2026.

Any occupancy of the Leased Premises by the Tenant prior to the Commencement Date shall be subject to the same terms and conditions as this Lease excepting only Article III – Rent.

INITIALS	
LANDLORD	TENANT

2.3 Obligation to Pay Rent

The Tenant's obligation to pay rent shall commence on the 1st day of August, 2021.

All rent shall be deemed to accrue from day to day, and if for any reason it shall become necessary to calculate rent for irregular periods of less than one (1) year or one (1) month, as the case may be, an appropriate pro rata adjustment shall be made in order to calculate rent for such irregular period.

2.4 Option to Extend the Lease Term

(a) So long as the Lease has not been terminated and: (a) the Tenant is not in default under the Lease, and (b) the Tenant has not been in persistent default under the Lease, then the Tenant shall have one (1) option of Five (5) years to renew the Lease. The Tenant shall exercise the option by giving written notice thereof to the Landlord at least six (6) months and no more than twelve (12) months prior to the expiry date of the Term, failing which this renewal option shall become void and of no further force or effect. Such renewal term shall commence on the day immediately following the date of expiration of the then current Term, on the same terms and conditions as are contained in the Lease (excluding any provisions for free, capped or fixed Rent, bonuses, improvement allowances, inducements, or options to renew), and except for minimum rent which shall be the fair market rent in all of the circumstances prevailing as at the last date for exercise of this option and same shall be mutually agreed upon or, failing agreement at least three months prior to expiration of the Term, determined by arbitration in accordance with the Arbitration act (Alberta) provided, however, that in no event shall the minimum rent, whether determined by mutual agreement or by arbitration, be less than the minimum rent payable to the Landlord in respect of the Lease Premises for any single Lease Year during the then current Term.

(b) In the event that the parties are unable to agree upon the minimum rent at least three (3) months prior to the expiration of the then current term of the Lease, the matter shall be determined by arbitration and either party may require same by giving a written notice to arbitrate to the other party. In such event, each of the parties shall give notice to the other, within ten (10) days after the giving of such notice to arbitrate, nominating one (1) arbitrator on its own behalf and the arbitrators so appointed shall within ten (10) days of the date of nomination of the latter of them to be nominated, nominate a further arbitrator and the arbitrators so nominated shall determine the minimum rent (provided that if either party shall fail to nominate an arbitrator in accordance with the foregoing or if the arbitrators who have been nominated by the parties fail to agree on the nomination of a further arbitrator, either of the parties to the arbitration may apply upon notice to a Justice of the Court of Queen's Bench of Alberta who shall have jurisdiction to nominate such arbitrator). The arbitrators shall determine the minimum rent based upon the current fair market rent with consideration to the value of the Leasehold Improvements installed on the Leased Premises. The decision of a majority of arbitrators shall be final and binding upon the parties. The cost of arbitration shall be borne equally between the parties to the arbitration unless the majority of the arbitrators shall decide otherwise. Except as to matters otherwise provided herein the provisions of the Arbitration Act of Alberta or any successor statute shall apply; provided always that if any dispute has not been determined by the arbitrators within sixty (60) days of the giving of notice to arbitrate,

INITIALS	
LANDLORD	TENANT

any party to the arbitration at any time thereafter, but prior to determination being made by the arbitrators, shall have jurisdiction to have recourse to the Court of Alberta having jurisdiction for the determination of the dispute, and upon the commencement of any action for such purpose, the jurisdiction of the arbitrators in respect of such dispute shall cease.

ARTICLE III – RENT

3.1 Minimum Rent

The Tenant agrees to pay to the Landlord via EFT or if the Landlord decides, with post-dated cheques payable in twelve (12) equal monthly instalments of calculated Minimum Rent, each in advance of the first (1st) day of each and every calendar month delivered at the office of the Landlord, or at such other place designated by the Landlord, in lawful money of Canada, without prior demand therefor and without any deduction or set-off whatsoever as fixed annual minimum rent:

The Minimum Rent of the Rentable Area of the Leased Premises throughout the Term shall be:

Period	/sqft	/annum	/month
August 1, 2021 – July 31, 2022	$17.00	$92,582	$7,715.17
August 1, 2022 – July 31, 2023	$17.00	$92,582	$7,715.17
August 1, 2023 – July 31, 2024	$17.00	$92,582	$7,715.17
August 1, 2024 – July 31. 2025	$17.00	$92,582	$7,715.17
August 1, 2025 – July 31, 2026	$17.00	$92,582	$7,715.17

which is payable in equal monthly installments (plus GST) in advance or on the first day of each and every month.

The Landlord acknowledges receipt from the Tenant of the sum of $6,727.50 (including GST at 5%) which is to be held as security for the performance of the Tenant's obligations herein accruing under the Lease, such balance to be refunded to the Tenant at the end of the Lease Term after inspection of the Leased Premises; any costs incurred by the Landlord, normal wear and tear excepted, shall be deducted from the balance. The Tenant acknowledges that on the happening of any of the events referred to in Section 21.1 herein, all prepaid rent (if any) shall be deemed forfeited as liquidated damages and not by way of a penalty, without prejudice to any other right, claim or action that the Landlord may have.

3.2 Signage Rent

The Tenant agrees to pay to the Landlord via EFT or at the office of the Landlord, in the same manner and upon the same conditions as set forth in 3.1, during each month of the Term hereof, as signage rent, the sum of:

INITIALS	
LANDLORD	TENANT

(a) $155/month for fascia signage
Note: All signage shall remain the property of the Landlord aside from the decals or letter print.

The Tenant is permitted to join in the current boulevard sign sharing arrangement for an additional fee, if one should exist or is available.

□ The Tenant elects to rent pylon sign space. ▪ The Tenant elects not to rent any pylon sign space.

3.3 Percentage Rent – INTENTIONALLY DELETED

3.4 Additional Rent

The Tenant shall pay as additional rent any other money required to be paid by the Tenant under this Lease, whether or not the same be designated as "additional rent" or whether the same be paid to the Landlord or otherwise. If such amounts or charges are not paid at the time provided in this Lease, they shall nevertheless, if not paid when due, be collectible as rent with the next instalment of rent thereafter falling due hereunder, but nothing herein contained shall be deemed to suspend or delay the payment of any amount of money or charge at the time the same becomes due and payable hereunder, or limit any other remedy of the Landlord.

Additional Rent is estimated at $10.10/sqft for the 2021 calendar year and will be adjusted annually.

3.5 Payments Generally

All payments of rent by Tenant to the Landlord of whatsoever nature required or contemplated by this Lease shall be made on the 1st of each month by way of Electronic Funds Transfer ("EFT"). Payments shall be deducted from the Tenant's bank account and credited to the Landlord, all at Tenant's cost and without prejudice to any other right or remedy of the Landlord. Tenant shall supply all information necessary to Landlord to assist the Landlord in set-up of EFT.

3.6 Letter of Credit – INTENTIONALLY DELETED

ARTICLE IV – RECORDS AND BOOKS OF ACCOUNT

4.1 Tenant's Records – INTENTIONALLY DELETED

4.2 Report by Tenant – INTENTIONALLY DELETED

ARTICLE V – AUDIT

5.1 Right to Examine Books – INTENTIONALLY DELETED

INITIALS	
LANDLORD	TENANT

5.2 Audit – INTENTIONALLY DELETED

ARTICLE VI – AUDIT

6.1 Intent

The Tenant acknowledges and agrees that it is intended that this Lease shall be a completely carefree net lease for the Landlord except as shall be otherwise provided in the specific provisions contained in this Lease, and that the Landlord shall not be responsible during the term of the Lease for any costs, charges, expenses and outlays of any nature whatsoever arising from or relating to the Leased Premises, or the contents thereof, excepting only the Landlord's income tax in respect of income received from leasing the Leased Premises, and the Tenant, except as shall be otherwise provided in the specific provisions contained in the Lease, shall pay all charges, impositions and costs of every nature and kind relating to the Leased Premises and the Tenant covenants with the Landlord accordingly.

ARTICLE VII – TAXES

7.1 Real Property Taxes

The Tenant shall pay to the Landlord, as additional rent, in addition to the rent and other sums due hereunder, in the manner hereinbefore specified, for each fiscal period adopted by the Landlord, the Tenant's Proportionate Share of all real property, sewer, municipal and other property taxes and rates, whether general or special, of any nature whatsoever, including school and local improvement taxes and rates levied or assessed by any lawful authority against the lands, buildings, and improvements from time to time forming part of the Shopping Centre or against the Landlord on account of its ownership thereof. The tax year of any lawful authority commencing during any Lease Year shall be deemed to correspond to such Lease Year. The Landlord may estimate in advance for each Lease Year the Tenant's Proportionate Share of real property taxes and the Tenant agrees to pay the Landlord its Proportionate Share of estimated real property taxes in monthly instalments in advance during the Term. The copy of the tax bill submitted by the Landlord to the Tenant shall be sufficient evidence of the amount of taxes assessed or levied against the parcel or real property to which such bill relates. If the Tenant shall have paid in excess of the Tenant's Proportionate Share of actual real property taxes levied or assessed against the Shopping Centre for such lease Year, the excess shall be refunded by the Landlord within thirty (30) days of such determination. If the amount paid by the Tenant is less that the actual Tenant's Proportionate Share of real property taxes, the Tenant agrees to pay such deficiency to the Landlord with the next due monthly payment of minimum rent.

7.2 Separate Tax Assessment

INITIALS	
LANDLORD	TENANT

In the event that there is a separate assessment for realty taxes made against the Leased Premises, the Tenant agrees to pay all such taxes attributable to the Leased Premises as a result of such separate assessment in the manner set out in Section 7.1 or directly to the taxing authority when due if required by the Landlord.

7.3 Taxes Payable by the Tenant

(a) In each and every year during the term, the Tenant shall pay and discharge within Twenty (20) days after same becomes due and payable, all taxes, rates, duties and assessments and other charges that may be levied, rated, charged, or assessed against or in respect of all improvements, machinery, equipment and facilities of the Tenant on or in the Leased Premises, other than real property taxes included in Section 7.1 and every tax and license fee in respect of any and every business carried on therein or in respect of the use or occupancy thereof by the Tenant (and any and every sub-Tenant or licensee) against the Tenant or against the Landlord on account of the Tenant's use and occupancy of the Leased Premises and against payment of all loss, costs, charges and expenses occasioned by, or arising from any and all such taxes, rates, duties, assessments license fees and any and all taxes which may in future be levied in lieu of such taxes; and any such loss, costs, charges, and expenses suffered by the Landlord may be collected by the Landlord in respect of rent in arrears. Any of the taxes, rates duties or assessments referred to in this Section 7.3 which are levied or assessed against the Landlord or the Shopping Centre shall be paid by the Tenant to the Landlord in the manner provided in Section 7.1.

(b) If any business transfer tax, value added tax, multi-stage sales tax, sales tax, good and services tax, or any like tax is imposed on the Landlord by any governmental authority on any rent (whether fixed minimum rent or additional rent) payable by the Tenant under this lease, the Tenant shall reimburse the Landlord for the amount of such tax forthwith upon demand (or at any time designated from time to time by the Landlord) as additional rent.

7.4 Evidence of Payment

The Tenant further covenants and agrees that within twenty (20) days of a request by the Landlord, the Tenant will promptly deliver to the Landlord for inspection, receipt for payment of all taxes, rates, duties, assessments, and other charges in respect of all improvements, equipment and facilities of the Tenant on or in the Leased Premises which were due and payable up to one (1) month prior to such request, and in any event will furnish to the Landlord evidence of payment satisfactory to the Landlord before the twenty-first (21st) day of January in each year covering payments for the preceding year.

ARTICLE VIII
PARKING AND USE OF COMMON AREA & FACILITIES

8.1 Control of Common Areas and Facilities by the Landlord

INITIALS	
LANDLORD	TENANT

All Common Areas and Facilities from time to time provided by the Landlord, shall at all times be subject to the exclusive control and management of the Landlord, and the Landlord shall have the right from time to time to establish, modify and enforce reasonable rules and regulations with respect to the Leased Premises and all Common Areas and Facilities.

8.2 Access

The Landlord for itself and its assigns hereby grants to the Tenant and its permitted assigns a free right of access in common with the Landlord and all other persons entitled to the like right over all parking areas, roadways and walkways in the Shopping Centre.

ARTICLE IX
COST OF MAINTENANCE AND OPERATION OF COMMON AREAS AND FACILITIES AND THE SHOPPING CENTRE

9.1 The Tenant to Bear Pro Rata Share of Expenses

In each Lease Year, the Tenant will pay to the Landlord, in addition to the rental specified elsewhere in this Lease, as additional rent, the Tenant's Proportionate Share of Cost of Maintenance and Operation of the Common Areas and Facilities and the Shopping Centre.

9.2 Payment of Tenant's Proportionate Share

Cost of Maintenance and Operation of the Common Areas and Facilities and the Shopping Centre shall be estimated by the Landlord for such period as the Landlord may determine and the Tenant agrees to pay to the Landlord its Proportionate Share of such amounts in monthly instalments in advance during such period together with other rental payments provided for in this Lease. Within ninety (90) days of the end of each Lease year, calendar year or fiscal year, or portion thereof, as the case may be, for which the Landlord has estimated any item of Cost of Maintenance and Operation of the Common Areas and Facilities and the Shopping Centre, the Landlord shall compute the actual amount of such item and make available to the Tenant for examination a statement of the gross amount of such item and the calculation of the Tenant's Proportionate Share thereof for each year or portion thereof. If the Tenant shall have paid in excess of the actual amount due, the excess shall be refunded by the Landlord within thirty (30) days of such determination, or be credited on account of rents next falling due. If the amount the Tenant has paid is less than the actual amount due, the Tenant agrees to pay such deficiency within the next minimum rent payment due.

ARTICLE X – TENANT'S COVENANTS

INITIALS	
LANDLORD	TENANT

10.1 Rent

The Tenant covenants to pay the minimum rent and additional rent as herein provided, without set-off or deduction and if applicable for any arrears, pay a late payment fee of $20.00 commencing on day two of the month when such Rent is due. An additional charge of $10.00 per day for each day late thereafter, commencing on the third day of the month, will also apply. Late fees will continue to accrue each day unit all Rent is paid in full. Any late fees shall be referred to and collected as addition rent.

ARTICLE XI – USE OF PREMISES

11.1 (a) The Tenant shall use the Leased Premises solely for the purpose of operating a Veterinary Clinic and the Tenant will not sue or permit or suffer the Leased Premises or any part thereof to be used for any other business or purposes and shall be operated continuously throughout the term by the Tenant under the operating name of Tudor Glen Veterinary Clinic/Wipe Your Paws and under no other name.

(b) The Tenant will not perform any acts or carry on any practices which may injure the building or buildings and improvements forming part of the Shopping Centre or be a nuisance or a menace to the Landlord or to other tenants in the Shopping Centre.

(c) The Tenant is prohibited from the manufacturing, transportation, storage, or disposal of any Hazardous Substance on or in the Leased Premises except in strict compliance with all applicable laws, by-laws and regulations and in compliance with the requirements of the Landlord's insurers.

(d) The Tenant will utilize the entire Leased Premises in the active and continuous conduct and operation of its business throughout the Term, and without limiting the generality of the foregoing, the Tenant will operate the Leased Premises in the active conduct of the Tenant's business during all days and hours of operation established by the Landlord for the Shopping Centre.

ARTICLE XII – UTILITIES – LEASED PREMISES

12.1 Utility Charges

Tenant shall be solely responsible for and shall promptly pay all charges for lighting, heating, ventilating and air conditioning of the Leased Premises, and all water, gas, electricity, telephone and other utilities used or consumed in the Leased Premises whether separately metered or not. In no event shall the Landlord be liable for, nor have any obligation with respect to, an interruption or failure in the supply of any such utilities or services to the Leased Premises, whether supplied by the Landlord or others, but shall take all reasonable and necessary steps to rectify any interruptions.

INITIALS	
LANDLORD	TENANT

ARTICLE XIII – MAINTENANCE OF LEASED PREMISES

13.1 Maintenance by Tenant

(a) The Tenant shall at all times during the Term at its own cost and expense, repair, maintain, keep and make replacements to the Leased Premises, and all equipment, fixtures and mechanical systems within or necessarily incidental to the Leased Premises, including but not limited to, the heating, plumbing, electrical, lighting, door locks, fascia signage, ventilating and air-conditioning equipment, and any improvement now or hereafter made to the Leased Premises in good order and repair, as a careful owner would do, and the Tenant covenants to perform such maintenance, to effect such repairs and replacements and to decorate at its own cost and expense as and when necessary or reasonably required so to do by the Landlord.

(b) The Tenant shall promptly repair make whole all damaged or faulty glass, plate glass, doors and windows in the Leased Premises unless such damage is caused by the Landlord or persons for whom the Landlord is in law responsible.

(c) The Tenant shall at all times keep the Leased Premises and, without limitation the loading dock and exterior surfaces of the Leased Premises in neat, clean and sanitary condition, and shall not allow any refuse or garbage, or pallets, cartons or like material resulting from deliveries, or loose or waste material to accumulate in or about the Leased Premises. All trash, rubbish, waste material and other garbage shall be kept at all times from the view of the general public, including patrons of the Shopping Centre, and shall be disposed of by the Tenant on a regular basis, as determined by the Landlord but at the Tenant's sole expense

(d) Where use includes cooking which results in the Tenant requiring temporary storage and disposal of vegetable and/or cooking oil, the Tenant agrees to construct a secure storage facility in a location to be specified by the Landlord. The cost of construction and maintaining the storage facility will be borne solely by the Tenant and subject to the Landlord's approval as to design and fabrication. All cooking oil and grease shall be disposed of by the Tenant on a regular basis, as determined by the Landlord but at the Tenant's sole expense.

In the event the Tenant fails to clean in accordance with Section 13.1(c) or 13.1(d) upon written notice from the Landlord so to do, the Landlord may clean the same and the cost thereof shall be paid by the Tenant to the Landlord as additional rent, upon demand.

13.2 Landlord's Approval

Before commencing any repairs, replacements, maintenance, alteration, decoration or improvements set out above, or elsewhere referred to in this Lease, the Tenant shall obtain the Landlord's written approval, which shall not be unreasonably withheld, and shall, if required by the Landlord to do so, submit plans and specifications

INITIALS	
LANDLORD	TENANT

therefor. Any repairs, replacements, maintenance, alterations, decorations or improvements so done by the Tenant shall be carried out in a good and workmanlike manner.

13.3 Landlord May Perform

If the Tenant refuses or neglects to repair property as required hereunder and to the reasonable satisfaction of the Landlord, the Landlord may make such repairs without liability to the Tenant (excepting the Landlord's gross negligence) for any loss or damage that may accrue to the Tenant's merchandise, fixtures or other property or to the Tenant's business by reason thereof, and upon completion thereof, the Tenant shall pay the Landlord's actual reasonable costs in the circumstances plus 10% for making such repairs, forthwith upon presentation of a bill therefor.

13.4 Heating, Ventilating and Air-Conditioning Equipment

Notwithstanding Section 13.1(a), at the Landlord's option, the Landlord may, at any time or from time to time, on the Tenant's behalf, maintain and make repairs and replacements to the heating, ventilating and air-conditioning equipment in the Leased Premises, but the Tenant shall pay to the Landlord as additional rent, the cost of such maintenance, repairs and replacements.

13.5 Repair by the Landlord

The Landlord shall be responsible only for structural repairs to the roof, foundations, sub-floor and outer support walls of the building or buildings comprising the Shopping Centre, normal wear and tear and damage by Insurable Hazards excepted.

13.6 Cost of Repair of Common Areas & Facilities where Tenant at Fault

If the Shopping Centre or the Common Areas and Facilities, including without limiting the generality of the foregoing, the common loading areas, the exterior of the Leased Premises, including the front thereof and entrance thereto, the boilers, engines, pipes and other apparatus (or any of them), used for the purpose of heating, ventilating or air-conditioning the Shopping Centre, or if the water pipes, drainage pipes, electric lighting or other equipment of the Shopping Centre or the roof or outside walls of the Shopping Centre, get out of repair or become damaged or destroyed through the negligence, carelessness or misuse of the Tenant, its servants, agents, employees, contractors, lessees, licensees or concessionaires, or through it or them in any way stopping up, injuring or rendering inoperable the heating apparatus, water pipes, drainage pipes of other equipment or part of the Shopping Centre, the expense of necessary repairs, replacement or alterations shall be borne by the Tenant who shall pay the same to the Landlord upon demand.

ARTICLE XIV – INSURANCE AND INDEMNITY

INITIALS	
LANDLORD	TENANT

14.1 Tenant's Insurance

The Tenant shall during the entire term hereof, take out and keep in full force and effect:

(a) Comprehensive General Liability insurance (including Non-Owned Automobile) written on an occurrence basis with respect to the business carried on, in, or from, the Leased Premises and the Tenant's use and occupancy of the Leased Premises and of any other part of the Property, with coverage for any one occurrence or claim of not less than TWO MILLION DOLLARS ($2,000,000) DOLLARS inclusive limits or such other amount as the Landlord may reasonably require upon not less than thirty (30) days notice at any time during the Term. Such insurance shall include the Landlord as a Named Insured and shall protect the Landlord in respect of claims by the Tenant as if the Landlord were separately insured;

(b) All Risks Insurance upon its merchandise, stock in trade, furniture and fixtures and Leasehold and Tenant's Improvements for not less than the full replacement value thereof, and which insurance shall include the Landlord as Named Insured as the Landlord's interest may appear;

(c) Business Interruption insurance in such amounts from time to time as necessary to compensate the Tenant for direct or indirect loss of sales or earnings resulting from the perils commonly included in all risk insurance and all other circumstances usually insured against by cautious tenants, including any losses resulting from interference with or prevention of access to the Leased Premises or the Building as a result of such perils or for any other reason;

(d) Tenant's Legal Liability insurance for the full replacement cost of the Leased Premises, and loss of use thereof;

(e) Standard Owner's form of Automobile insurance policy providing third party liability insurance with inclusive limits of such amounts required by the Landlord but, in any event, not less than ONE MILLION ($1,000,000) DOLLARS inclusive limits, and all other usual benefits covered by such form of policy from time to time, covering all licensed vehicles owned by or operated on behalf of the Tenant or employees;

(f) Insurance against destruction or damage caused by such perils usually covered in an all risk policy on all glass and store front and store facing materials in or about the Leased Premises; and

(g) Insurance against such other perils and in such amounts as the Landlord or any mortgagee, debenture holder or other secured creditor of the Landlord may from time to time reasonably require upon not less that ninety (90) days written notice, such requirement to be made on the basis that the required insurance is customary at the time for prudent tenants of properties similar to the Property.

INITIALS	
LANDLORD	TENANT

All insurance required to be maintained by the Tenant shall be on terms and with insurers satisfactory to the Landlord. Each policy shall contain the standard mortgage clause of any mortgagee, debenture holder or other secured creditor of the Landlord, a waiver by the insurer of any rights of subrogation or indemnity or any other claim over which the insurer might otherwise be entitled against the Landlord or the agents or employee of the Landlord, and shall also contain an undertaking by the insurer that no material change adverse to the Landlord or the Tenant will be made, and the policy will not lapse or be cancelled, except after not less than thirty (30) days written notice to the Landlord, if and whenever requested by it, certificates or other evidences acceptable to the Landlord as to the insurance from time to time effected by the Tenant and its renewal or continuation in force, together with evidence as to the method of determination of full replacement cost of the Tenant's Leasehold Improvements, trade fixtures, furniture and equipment, and if the Landlord reasonably concludes that the full replacement cost has been underestimated, the Tenant shall forthwith arrange for any consequent increase in coverage required under paragraph 14.1. If the Tenant shall fail to take out, renew and keep in force such insurance, or if the evidences submitted to the Landlord are unacceptable to the Landlord (or no such evidences are submitted within a reasonable period after request therefor by the Landlord), then the Landlord may give to the Tenant written notice requiring compliance with this paragraph and specifying the respects in which the Tenant is not then in compliance with this paragraph. If the Tenant does not within forty-eight (48) hours provide appropriate evidence of compliance with this paragraph, the Landlord may, (but shall not be obligated to) obtain some or all of the additional coverage or other insurance which the Tenant shall have failed to obtain, without prejudice to any other rights of the Landlord under this Lease or otherwise, and the Tenant shall pay to the Landlord on demand all premiums and other reasonable expenses incurred by the Landlord.

14.2 Limitation of Landlord's Liability

The Tenant agrees that the Landlord shall not be liable for any bodily injury or death of, or loss or damage to any property belonging to the Tenant or its employees, invitees or licensees or any other person in, on or about the Property unless resulting from the actual willful misconduct or gross negligence of the Landlord or its own employees. In no event shall the Landlord be liable for any damage which is caused by steam, water, falling rain or snow or other thing which may leak into, issue, fall or flow from any part of the Property, including the roof or from the pipes or plumbing works, including the sprinkler system (if any) therein or from any other place or for any damage caused by or attributable to the condition or arrangement of any electric or other wiring of sprinkler heads (if any) or for any damage caused by any other tenant.

14.3 Indemnity of Landlord

Except with respect to claims or liabilities in respect of any damage which is Insured Damage to the extent of the cost of repairing such Insured Damage, the Tenant agrees to indemnify and save harmless the Landlord in respect of:

(a) all claims for bodily injury or death, vehicle damage, property damage or other loss or damage arising from the conduct of any work or any act or omission of the Tenant or any assignee, sub-tenant, agent,

INITIALS	
LANDLORD	TENANT

employee, contractor, invitee or licensee of the Tenant, and in respect of all costs, expenses and liabilities incurred by the Landlord in connection with or arising out of all such claims, including the expenses of any action or proceeding pertaining thereto; and

(b) any loss, cost, (including, without limitation, lawyers' fees and disbursements), expense or damage suffered by the Landlord arising from any breach by the Tenant of any of its covenants and obligations under this Lease.

14.4 Increase in Insurance Premium

The Tenant agrees that it will not keep, use, sell or offer for sale in or upon the Leased Premises an article which may be prohibited by the form of fire insurance policy in force from time to time covering the Shopping Centre. In the event the Tenant's occupancy of, conduct of business in, or sale of any merchandise from, or on the Leased Premises, or in the event any activity carried on or permitted to be carried on by the Tenant whether or not the Landlord has consented to same, causes any increase in premiums for the insurance carried from time to time by the Landlord for the Shopping Centre, the Tenant shall pay any such increase in premium as additional rent within ten (10) days after bills for such additional premiums shall be rendered by the Landlord. In determining whether increased premiums are a result of the Tenant's use or occupancy of the Lease Premises, or the sale of any article therein or therefrom, a schedule issued by the organization making the insurance rate on the Shopping Centre showing the various components of such rates shall be conclusive evidence of the several items and charges which make up such rates.

14.5 Definition of "Insured Damage"

For the purposes of this Lease, "Insured Damage" means that part of any damage occurring to the Property of which the entire cost of repair (or the entire cost of repair other than a deductible amount properly collectable by the Landlord as part of the Additional Rent) is actually recovered by the Landlord under a policy or policies of insurance from time to time effected by the Landlord pursuant to subparagraph 17.1(c). Where an applicable policy of insurance contains an exclusion for damages recoverable from a third party, claims as to which the exclusion applies shall be considered to constitute Insured Damage only if the Landlord successfully recovers from the third party.

ARTICLE XV – ASSIGNMENT AND SUBLETTING

15.1 The Tenant shall not assign this Lease in whole or in part, nor sublet all or any part of the Leased Premises without the prior written consent of the Landlord in each instance, which consent shall not be unreasonably withheld. The Landlord's refusal of consent shall be deemed reasonable (without in any way restricting the Landlord's right to refuse its consent on other reasonable grounds) where the assignee or subtenant proposed by the Tenant is then a tenant of the Shopping Centre and the Landlord has or will have during the next ensuing six

INITIALS	
LANDLORD	TENANT

(6) months suitable space for rent in the Shopping Centre, where the intended us of the Premises by the proposed assignee or sub-tenant is not identical to that of the Tenant, where the proposed assignee or sub-tenant does not intend to bona fide physically occupy and carry on business from the Leased Premises or when the proposed assignment or sublease is made prior to the Tenant physically and bona fide occupying and carrying on business from the Leased Premises. If at any time effective control of the Tenant on the date of execution of this Lease, the same shall be deemed to constitute a sublease subject to all of the provisions hereof. Any proposed assignment or sublease shall comply with the provisions of this Section as herein set forth. Any consent given by the Landlord to the Tenant with regard to an assignment or subletting shall be subject to the following conditions:

(a) Notwithstanding any assignment or any sub-lease, the Tenant and Indemnifier shall remain fully liable on this Lease and shall not be released from performing any of the terms, covenants and conditions of this Lease. If any alterations to the Premises are required, physical or otherwise, the Tenant must first seek written approval from the Landlord and the Tenant must solely pay for all incurred construction costs;

(b) No assignment or sub-lease shall be made or proposed other than to responsible persons, firms, partnerships or bodies corporate who are experienced in and agree to carry on the type of business conducted in the Leased Premises by the Tenant, and who undertake to perform and observe the obligations of the Tenant hereunder by entering into an Assignment or Sublease Agreement directly with the Landlord, with documentation to be prepared by the Landlord at the Tenant's sole cost and expense;

(c) The Tenant shall not assign the Lease or sublet the whole or any part of the Leased Premises unless it has been in possession of the Leased Premises and conducting business in the Leased Premises no less then twenty-four (24) months following the Commencement Date.

(d) If the Tenant applies to the Landlord to assign this Lease or sublet all or any part of the Leased Premises, the Landlord shall have the right within thirty (30) days following the receipt of such application to terminate this Lease in which event the Tenant will be relieved of all further obligation under this Lease.

(e) The consent by the Landlord to any assignment or sublease shall not constitute a waiver of the necessity for such consent to any subsequent assignment or sublease;

(f) If the Lease is assigned or if the Leased Premises or any part thereof is sublet or occupied by anybody other than the Tenant, the Landlord may, but shall not be obliged to, collect rent directly from the assignee, sub-tenant or occupant and apply the net amount collected, or the necessary portion thereof, to the rent herein reserved.

INITIALS	
LANDLORD	TENANT

(g) The Tenant is permitted to rent out the Leased Premises to a third party on an hourly basis provided proof of insurance is provided to the Landlord from the third party under the same Terms and Conditions as the Lease.

ARTICLE XVI – WASTE, GOVERNMENTAL REGULATIONS

16.1 Waste or Nuisance

The Tenant shall not commit or suffer to be committed any waste upon the Leased Premises or any nuisance or other thing which may disturb the quiet enjoyment of any other tenant in the Shopping Centre.

16.2 Governmental Regulations

The Tenant shall, at the Tenant's sole cost and expense, comply with all of the requirements of all municipal, provincial, federal and other applicable governmental authorities, now in force, or which may hereafter be in force, pertaining to the Leased Premises, and shall faithfully observe in the use of the Leased Premises all municipal by-laws and provincial and federal statutes and regulations now in force or which may hereafter be in force.

The Tenant shall, at the Tenant's sole cost and expense, comply with all governmental regulations and requirements concerning Hazardous Substances, environmental waste and contamination. The Tenant shall, at the request of the Landlord or any government authority, remove any Hazardous Substances from the Leased Premises. The Tenant shall report any environmental contamination or order concerning contamination or failure to comply with governmental regulations or requirements immediately to the Landlord and promptly perform and required environmental audit. The Tenant shall be responsible for all costs to clean up any environmental contamination caused as a result of its occupancy regardless of whether the Lease Term has expired.

The Tenant shall provide the Landlord with any information that the Landlord requests (as a prudent Landlord acting responsibly) concerning the nature and conduct of any business operating in the Leased Premises and its compliance with governmental regulations and requirements concerning Hazardous Substances, environmental waste and contamination.

16.3 Observance of Law

The Tenant covenants to comply with all provisions of law including, without limiting the generality of the foregoing, federal and provincial legislative enactments, building by-laws and other governmental or municipal regulations which relate to the partitioning, equipment, operation and use of the Leased Premises, or to the making of any repairs, replacements, alterations, additions, changes, substitutions or improvements of or to the Leased Premises, and to comply with all police, fire and sanitary regulations imposed by any governmental,

INITIALS	
LANDLORD	TENANT

provincial or municipal authorities or made by fire insurance underwriters, and to observe and obey governmental and municipal regulations and other requirements governing the conduct of any business conducted in the Leased Premises.

ARTICLE XVII – LANDLORD'S COVENANTS

17.1 Landlord's Covenants

Upon payment by the Tenant of the rents herein provided, and upon observance and performance of all covenants, terms and conditions on the Tenant's part to be observed and performed, the Landlord hereby covenants with the Tenant:

(a) For quiet enjoyment for the term hereby demised without hindrance or interruption by the Landlord, or any other person or persons lawfully claiming by, through or under the Landlord;
(b) Subject to Article VII, to pay in the first instance all real property taxes and all other taxes, if any, from time to time payable by the Landlord and levied or assessed against the Shopping Centre;
(c) Subject to Sections 13.4 and 9.1 to maintain, and to insure the Common Area and Facilities and the Shopping Centre as a landlord acting reasonably would do in similar circumstances.

17.2 Loss and Damage

The Landlord shall not be liable for any death or injury, or damage to property of the Tenant, or Tenant employees, or others located on property of the Tenant or of others by theft or otherwise except for the gross negligence of the Landlord and persons for whom the Landlord is in law responsible and for damage or injury resulting from the failure of the Landlord to repair. All property of the Tenant kept or stored on the Leased Premises shall be so kept or stored at the risk of the Tenant only, and the Tenant shall hold the Landlord harmless from any claims arising out of any of the matters mentioned in this Section 17.2. The Tenant shall be responsible for any cost, including doors, door locks, walls, ceilings, and windows, associated with a break-in to their respective Premises.

ARTICLE XVIII – CHANGES AND ADDITIONS TO BUILDINGS

18.1 Changes and Additions to Buildings

The Landlord hereby reserves the right at any time to change the configuration of the Common Areas and to make alterations or additions to and to build additional storeys on the buildings in which the Leased Premises are contained and to build adjoining the same. The Landlord also reserves the right to construct other buildings or improvements in the Shopping Centre from time to time, and to make alternations thereof or additions thereto, and to build additional storeys on any such building or buildings, and to build adjoining same and to construct

INITIALS	
LANDLORD	TENANT

multi-deck or elevated or underground parking facilities.

ARTICLE XIX – SIGNS, FIXTURES AND ALTERATIONS

19.1 Installation by Landlord

The Landlord shall own and install at the Landlord's expense the strip fascia signband casing and pylon. The Tenant shall pay for the purchase and installation of the Tenant's fascia and pylon sign copy from the sign company selected by the Landlord.

The following signage shall be provided to the Tenant by the Landlord:

(a) the fascia sign casing directly above the Leased Premises.

The Tenant's signage shall comply with the requirements of any governmental or other authority having jurisdiction, and shall be of a type and in a form approved by the Landlord acting reasonably.

19.2 Installation by Tenant

The Tenant shall not make or cause to be made any alterations, additions or improvements, or install or cause to be installed any trade fixtures, floor coverings, interior or exterior lighting, or mechanical or electrical systems and fixtures, or plumbing fixtures, shades or awnings, or make any changes to the store from or hand from or affix anything to the ceiling of the Leased Premises without first obtaining the Landlord's written consent. The Tenant shall present to the Landlord plans and specifications for such work at the time consent is sought, and the work shall be carried out in a good and workmanlike manner.

19.3 Removal and Restoration by Tenant

All fixtures, improvements and alterations attached to or built into the Leased Premises made by the Tenant, or made by the Landlord, on the Tenant's behalf by agreement or under this Lease, shall be and remain part of the Leased Premises. If the Tenant has paid the Rent hereby reserved and performed the covenants herein contained, the Tenant shall have the right to remove its trade fixtures at the expiration of the Term. The Landlord may, at its option, require the Tenant to remove any Hazardous Substances and any and all of the Tenant's trade fixtures or other fixtures, improvements or alterations attached to or built into the Leased Premises, at the Tenant's sole expense, before surrendering the Leased Premises. The Tenant shall make good any damage (whether caused by the removal of fixtures or otherwise) to the Leased Premises and to the Shopping Centre, and to the heating, ventilation, air-conditioning, plumbing, electrical or other mechanical systems in the Shopping Centre excepting only reasonable wear and tear. Unless otherwise agreed to in writing or unless the Landlord requires their removal as aforesaid, all fixtures, improvements and alterations (other than trade fixtures) attached to or built into the Leased Premises, shall remain upon the Leased Premises and become the property of the Landlord without any payment therefor being made by the Landlord to the Tenant at the

INITIALS	
LANDLORD	TENANT

expiration or sooner termination of Term. The covenants here contained shall survive the termination or expiry of this Lease.

19.4 Not to Overload Floors

The Tenant covenants and agrees that it will not bring upon the Leased Premises or any part thereof, any machinery, equipment, article or thing that by reason of its weight, size or use might reasonably damage the Leased Premises, and will not at any time overload the floors of the Leased Premises, and that if any damage is caused to the Leased Premises by any machinery, equipment, article or thing or by overloading or by any act, neglect, or misuse on the part of the Tenant or its servants, agents or employees or any person having business with the Tenant, the Tenant will forthwith repair the same or pay to the Landlord the cost of making good the same.

19.5 Tenant Shall Discharge All Liens

The Tenant shall promptly pay all its contractors and material men, and shall do any and all things necessary so as to minimize the possibility of a lien attaching to the Leased Premises or to any or all of the Shopping Centre and should any such lien be made or filed, the Tenant shall discharge the same within ten (10) days thereafter at the Tenant's expense and shall indemnify and save harmless the Landlord therefrom.

ARTICLE XX – DAMAGE AND DESTRUCTION

20.1 Total or Partial Destruction

In the event the Leased Premises are wholly or partially damaged or destroyed by an insurable hazard, the Landlord shall, subject to 20.1(c), and subject to the consent of the Landlord's mortgagee, repair or replace the Leased Premises with reasonable diligence.

(a) The Landlord shall not be obliged to expend for such repair or replacement an amount in excess of the insurance proceeds recovered or recoverable as a result of such damage, and the Tenant shall cause all proceeds of insurance to be paid to the Landlord on account of the cost of repair or replacement of leasehold improvements. In no event shall the Landlord be required to repair or replace the Tenant's stock and trade, fixtures, furnishings, floor covering or equipment.

(b) If the casualty, repairing or rebuilding shall render the Leased Premises untenantable, in whole or in part, a proportionate abatement of the rent shall be allowed from the date when the damage occurred until the date the Landlord completes such work, said proportion to be computed on the basis of the relation which the gross square foot floor area of the space rendered untenantable bears to the floor area of the Leased Premises.

INITIALS	
LANDLORD	TENANT

(c) If any damage or destruction to the Leased Premises or to the Shopping Centre cannot in the Landlord's opinion, be repaired and restored with reasonable diligence within one hundred and eighty (180) days of the date of the happening of such damage or destruction, the Landlord shall give notice to the Tenant to that effect within ninety (90) days of such damage or destruction, whereupon, the Landlord or the Tenant may, at their respective options, terminate this Lease and the tenancy hereby created by giving to the Tenant or the Landlord, as the case may be, within sixty (60) days following the date of such Landlord's determination, written notice of the election so to do, and in the event of such termination, the Lease shall terminate and the rent shall be adjusted as of the date of the occurrence of such damage or the date the Tenant properly ceases to conduct its business from the Leased Premises, whichever is later.

20.2 Notice by Tenant

The Tenant shall give immediate notice to the Landlord, in case of fire or accidents in the Leased Premises, or in the building of which the Leased Premises are a part, or of defects therein, or in any fixtures or equipment, notwithstanding the fact that the Landlord may have no obligations with respect thereto.

20.3 Notice of Repair and Reconstruction

From and after the date upon which the Tenant is notified in writing by the Landlord that the Landlord's work of reconstruction and/or repair is completed, the Tenant shall immediately commence all work required to fully restore the Leased Premises and shall complete such work and reopen for business within sixty (60) days of receipt of the Landlord's notice aforesaid with the premises fully fixture, stocked and staffed. The certificate of the Landlord's architect shall bind the parties hereto as to the state of tenantability of the Leased Premises, and as the date upon which the Landlord's work of reconstruction and/or repair is completed.

ARTICLE XXI – DEFAULT OF TENANT

21.1 Right to Re-enter

If and whenever:

(a) part or all of the Rent or other sum is not paid when due, and such default continues for seven (7) days after the due date thereof; or

(b) if the Tenant shall fail to comply with any of the covenants hereunder after the Landlord has given notice to the Tenant in writing stating the default with reasonably sufficient particulars and requiring it to be remedied and such default has not been remedied by the Tenant within fifteen (15) days after receipt of

INITIALS	
LANDLORD	TENANT

such notice, or such longer period as may be reasonably necessary in view of the nature of default;

(c) or if the Tenant shall falsify any report required to be furnished to the Landlord pursuant to the terms of this Lease;

(d) or if the Tenant or any guarantor or indemnifier of this Lease shall become bankrupt or insolvent, or file any proposal, or if a Receiver is appointed of all or a portion of the Tenant's property, or any such guarantor's or indemnifier's property, or if the Tenant makes a sale in bulk without the prior written consent of the Landlord, such consent not to be unreasonably withheld, or if the Tenant shall abandon the Leased Premises, or suffer this Lease or any of its assets to be taken under any writ of execution or like process, or if re-entry is permitted under any other term of this Lease;

then the Landlord, in addition to any other rights or remedies it may have, shall have the immediate right of re-entry and may remove all persons and property from the Leased Premises, and such property may be removed and stored for the account of the Tenant, or be sold by the Landlord all without service of notice or restore to legal process, and without being deemed guilty of trespass, or becoming liable for any loss or damage which may be occasioned thereby and to have again, repossess and enjoy the Leased Premises as of its former estate.

21.2 Surrender

If and whenever the Landlord is entitled to or does re-enter, the Landlord may terminate this Lease by giving notice thereof, and in such event the Tenant shall forthwith vacate and surrender the Premises.

21.3 Damages

In the event of any breach of this Lease by the Tenant, the Landlord, in addition to exercising any other remedies available to the Landlord, and whether the Landlord terminates this Lease or not, may recover from the Tenant all damages it may incur by reason of such breach, including the cost of recovering the Leased Premises, solicitor's fees, and including the worth at the time of such termination of the excess, if any, of the amount of rent and charges equivalent to rents reserved in this Lease for the remainder of the stated Term, all of which amounts shall be immediately due and payable by the Tenant to the Landlord. In any of the events referred to in Section 21.1. hereof, the full amount of the current month's minimum rent and additional rent, and the next three (3) month's minimum rent and estimated additional rent shall immediately become due and payable, and the Landlord may immediately distrain for the same, together with any arrears and interest thereon unpaid.

21.4 Distress

If and whenever the Tenant shall be in default in the payment of any money, whether hereby expressly reserved or deemed as rent, or part thereof, the Landlord may, without notice or any form of legal process whatsoever enter upon the Leased Premises and seize, remove and sell the Tenant's goods, chattels and equipment therefrom or seize, remove and sell, by judicial or formal process or by private sale, any goods, chattels and

INITIALS	
LANDLORD	TENANT

equipment in any place to which the Tenant or any other person may have removed them, in the same manner as if they had remained and been distrained upon the Leased Premises, all notwithstanding any rule of law or equity to the contrary, and the Tenant hereby waives and renounces the benefit of any present or future statue or law limiting or eliminating the Landlord's right of distress or sale.

ARTICLE XXII – RIGHT OF ENTRY

22.1 Right of Entry

The Landlord or its agents shall have the right to enter the Leased Premises during normal business hours, except where otherwise agreed, to examine the same and to show them to prospective purchasers, lessees or mortgagees, and to enter the Leased Premises at times mutually agreed between the Landlord and the Tenant to make such repairs, as the Landlord may deem necessary or desirable, and the Landlord shall be allowed to take all material into and upon the Leased Premises that may be required therefor without the same constituting an eviction of the Tenant in whole or in part, and the rent reserved shall in no way abate by reason of loss or interruption of business of the Tenant or otherwise while said repair are being made. During the six (6) months prior to the expiration of the term of this Lease, the Landlord may place upon the Leased Premises reasonable sized notices "To Let" or "For Lease". The Tenant shall permit such notices to remain thereon without molestation. The Landlord may at any time within six (6) months before the end of the term enter the Leased Premises and bring others at all reasonable hours for the purpose of offering the Leased Premises for rent. If the Tenant or Tenant's representative shall not be present to open and permit an entry into the Leased Premises, at any time, when for any reason an emergency or reasonably apprehended emergency shall exist or be contemplated, the Landlord or its agent may enter the same by a master key, or may forcibly enter the same, provided reasonable care is exercised without rendering the Landlord or such agent liable therefor, and without in any manner affecting the obligations and covenants of this Lease. Nothing herein contained however, shall be deemed or construed to impose upon the Landlord any obligation, responsibility or liability whatsoever, for the care, maintenance or repair of the Leased Premises, or any part thereof, except as otherwise herein specifically provided.

ARTICLE XXIII – ASSIGNMENT BY LANDLORD

23.1 Assignment

In the event of the sale or lease by Landlord of the Shopping Centre, or the assignment by the Landlord of this Lease, or any interest of the Landlord hereunder, and to the extent that any purchaser or assignee has acquired the interest of the Landlord in the Shopping Centre, the Landlord shall without further written agreement, be freed and relieved of liability upon the covenants and obligations contained in this Lease.

INITIALS	
LANDLORD	TENANT

ARTICLE XXIV – RULES AND REGULATIONS

24.1 Rules and Regulations

Any reasonable rules and regulations (including those attached as Schedule "C" hereto) adopted and promulgated by the Landlord from time to time hereby made a part of this Lease, and the Tenant agrees to comply with and observe the same. The Tenant's failure to keep and observe such rules and regulations shall constitute a breach of this Lease in the same manner as if they were contained herein as covenants. Written notice of such rules and regulations and any amendments or supplements, if any, shall be given to the Tenant, and the Tenant agrees thereupon to comply with and observe all such rules and regulations and amendments thereto and supplements thereof, provided that no rule or regulation which contradicts any provision of this Lease shall be binding upon the Tenant.

ARTICLE XXV
STATUS STATEMENT, ATTORNMENT, SUBORDINATION

25.1 Status Statement

Within ten (10) days after request therefor by the Landlord, or in the event that upon any sale, assignment, lease or mortgage of the Leased Premises and/or Shopping Centre, the Tenant agrees to deliver in a form supplied by the Landlord, a certificate of any proposed mortgagee or purchaser, or to the Landlord certifying (if such be the case) that this Lease is in full force and effect, and that there are no defenses or set-offs thereto, or stating those claimed by the Tenant.

25.2 Attornment

So long as the Tenant's occupation and possession of the Leased Premises is not disturbed, the Tenant shall, in the event any proceedings are brought for the foreclosure of, or in the event of exercise of the power or sale under any mortgage made by the Landlord covering the Leased Premises, attorn to the mortgagee or the purchaser upon any such foreclosure or sale and recognize such mortgagee or purchaser as the Landlord under this Lease.

25.2 Subordination

This Lease is and shall be subordinate at all times to any mortgage or mortgages, granted by the Landlord, or the lien resulting from any other method of financing or refinancing, now or hereafter in force against the Shopping Centre, or against any buildings hereafter placed upon the land of which the Leased Premises are a part, and to all advances made or hereafter to be made upon the security thereof.

INITIALS	
LANDLORD	TENANT

ARTICLE XXVI - MISCELLANEOUS

26.1 Holding Over

(a) Month-to-Month Tenancy

If with the Landlord's prior written consent, the Tenant remains in possession of the Premises after the expiration or other determination of the Term, there shall be no tacit renewal of this Lease and the Tenant shall be deemed to be occupying the Premises on a month-to-month tenancy only, at a monthly rental equal to the Rent as determined in accordance with Article III or such other rental as is stated in such written consent, and such month-to-month tenancy may be terminated by the Landlord or the Tenant on the last day of any calendar month by delivery of at least thirty (30) days advance notice of termination to the other.

(b) Tenancy at Sufferance

If without the Landlord's prior written consent the Tenant remains in possession of the Premises after the expiration or other termination of the Term, the Tenant shall be deemed to be occupying the Premises upon a tenancy at sufferance only, at a monthly rental equal to two (2) times the Rent determine in accordance with Article III. Such tenancy at sufferance may be terminated by the Landlord at any time by notice of termination to the Tenant, and by the Tenant on the last day of any calendar month by at least thirty (30) days advance notice of termination to the Landlord.

(c) General

Any month-to-month tenancy or tenancy at sufferance thereunder shall be subject to all other terms and conditions of this Lease except any right of renewal and nothing contained in this Article 26.1 shall be construed to limit or impair any of the Landlord's rights of re-entry or eviction or constitute a waiver thereof.

26.2 Successors

All rights and liabilities herein given to, or imposed upon the respective parties hereto shall extend to and bind the several respective heirs, executors, administrators, successors and assigns of the said parties; and if there be more than one tenant, they shall all be bound jointly and severally by the terms, covenants, and agreements herein. No rights, however, shall enure to the benefit of any assignee of the Tenant unless the assignment to such assignee has been approved by the Landlord in writing as provided in Section 15.1 hereof.

26.3 Entire Agreement

This Lease and the schedules attached hereto and forming a part hereof, together with the Offer to Lease, set forth all the covenants, promises, conditions, agreements and understandings between the Landlord and the Tenant. Where there is any direct conflict between the terms of the Offer to Lease and this Lease, the terms of

INITIALS	
LANDLORD	TENANT

this Lease shall prevail. Except as herein otherwise provided, no subsequent alternation, amendment, change or addition to this Lease shall be binding upon the Landlord or Tenant unless reduced to writing and executed by them.

26.4 Force Majeure

Save as otherwise herein provided, in the event that either party hereto shall be delayed or hindered in or prevented from the performance of any act required hereunder potentially by reason of strikes, lock-outs, labour troubles, inability to procure materials, long term failure of power, riots, insurrection, war or other reason of a like nature not the fault of the party delaying in performing work or doing acts required under the terms of this Lease, and not a delay caused by lack of funds or other financial reason, then performance of such act shall be excused for the period of the delay and the period for the performance of any such act shall be extended for a period equivalent to the period of such delay. Nevertheless, this section of the Lease will not operate to excuse the Tenant from the prompt payment of all owed Rent, nor entitle the Tenant to compensation for any inconvenience, nuisance or discomfort.

26.5 Notices

Any notice, demand, request or other instrument which may be or is required to be given under this Lease shall be delivered in person or sent by email to:

(a) IF TO THE LANDLORD

H&A PROPERTIES LTD.
haproperties@live.com

(b) IF TO THE TENANT

Tenant's email or c/o the Leased Premises or at such other address as the Landlord or Tenant may designate by written notice. Any such notice, demand, request or consent shall be conclusively deemed to have been given or made on the day upon which such notice, demand, request or consent is delivered, or, if mailed, then on the fifth (5th) business day following the date of the mailing as the case may be, and ether party may at any time give notice in writing to the other of any change of address of the party giving such notice, and from and after the giving of such notice, the address therein specified shall be deemed to be the address of such party of the giving notices hereunder.

26.6 Section and Article Numbers

The section and article numbers appearing in this Lease are inserted only as a matter of convenience, and in no way limit the scope or intent of such paragraphs and articles of this Lease.

INITIALS	
LANDLORD	TENANT

26.7 Governing Law

This Lease shall be construed and governed by the laws of the Province of Alberta.

26.8 Time

Time shall be strictly of the essence herein.

26.9 Relationship of Parties

The Landlord and the Tenant are agreed that nothing contained in this Lease, nor any acts of the Landlord or the Tenant shall be deemed to create any relationship between the Landlord and the Tenant, other that the relationship of the Land lord and Tenant.

26.10 No Waver

No condoning, excusing or overlooking by the Landlord or the Tenant of any default, breach or non-observance by the Tenant or Landlord at any time or times in respect of any covenant, proviso or condition herein contained shall operate as any continuing or subsequent default, breach or non-observance, or so as to defeat or affect in any way the rights of the Landlord or the Tenant herein in respect of any such continuing or subsequent default or breach, and no waiver shall be inferred from or implied by anything done or omitted by the Landlord or the Tenant save only express waiver in writing. All rights and remedies of the Landlord in this Lease contained shall be cumulative and not alternative.

26.11 Financial Reporting by Tenant – INTENTIONALLY DELETED

26.12 Registration

It is hereby agreed that the Tenant shall not register this Lease in any Land Titles Office, but may file a Caveat pursuant to this Lease provided that the form and content of such Caveat has first been approved by the Landlord and its solicitors.

26.13 Tenant's Acceptance

The Tenant hereby accepts this Lease and all of the terms and conditions herein contained.

26.14 Co-Tenants

All obligations of the Tenant hereunder shall be construed to be join and several when applicable to more than one party.

26.15 This Agreement may be executed in counterparts (including counterparts transmitted by facsimile, PDF, email or other electronic means) and such counterparts taken together shall be deemed to constitute one and the same instrument.

INITIALS	
LANDLORD	TENANT

ARTICLE XXVII – MERCHANT'S ASSOCIATION

27.1 Merchants Association

If and when the Landlord shall cause a Shopping Centre Merchants Association to be formed, the Tenant shall become a member of such Association and shall retain its membership in such Association while required by the Landlord to do so. The Tenant will pay the Tenant's Proportionate Share of dues and group advertising assessments or in such other proportion as may be decided upon from time to time by such association, but always be decided upon from time to time by such association, but always on the condition that all other retail members of the Members of the Merchants Association are obligated to pay their respective share calculated in the same manner as the Tenant's share, and will observe all the rules, regulations and by-laws of such association provided that all rules, regulations and by-laws of such association shall at all times be subject to approval by the Landlord, which shall not be unreasonably withheld, and without such approval will not be binding upon the members, and provided further that nothing herein contained shall oblige the Tenant to do anything or refrain from doing anything that is in conflict with this Lease. The Tenant covenants with the Landlord not to support or become a member of any association of merchants in the Shopping Centre not formed by the Landlord

IN WITNESS WHEREOF the parties hereto have accepted and agreed to:

H&A PROPERTIES LTD.
(Landlord)

Per: _____
Name: _____
Title: _____
Date: _____
I have the authority to bind the corporation

CLINIC SOLUTIONS INC.
(Tenant)

Per: _____
Name: Scott Wilde
Title: Vice-President
Date: July 30/21
I have the authority to bind the corporation

Per: _____
Name: _____
Title: _____
Date: _____
I have the authority to bind the corporation

Per: _____
Name: _____
Date: _____(Witness)

INITIALS	
LANDLORD	TENANT

SCHEDULE "A"

LEGAL DESCRIPTION:

Lot 66A, Block 1, Plan 892 3077

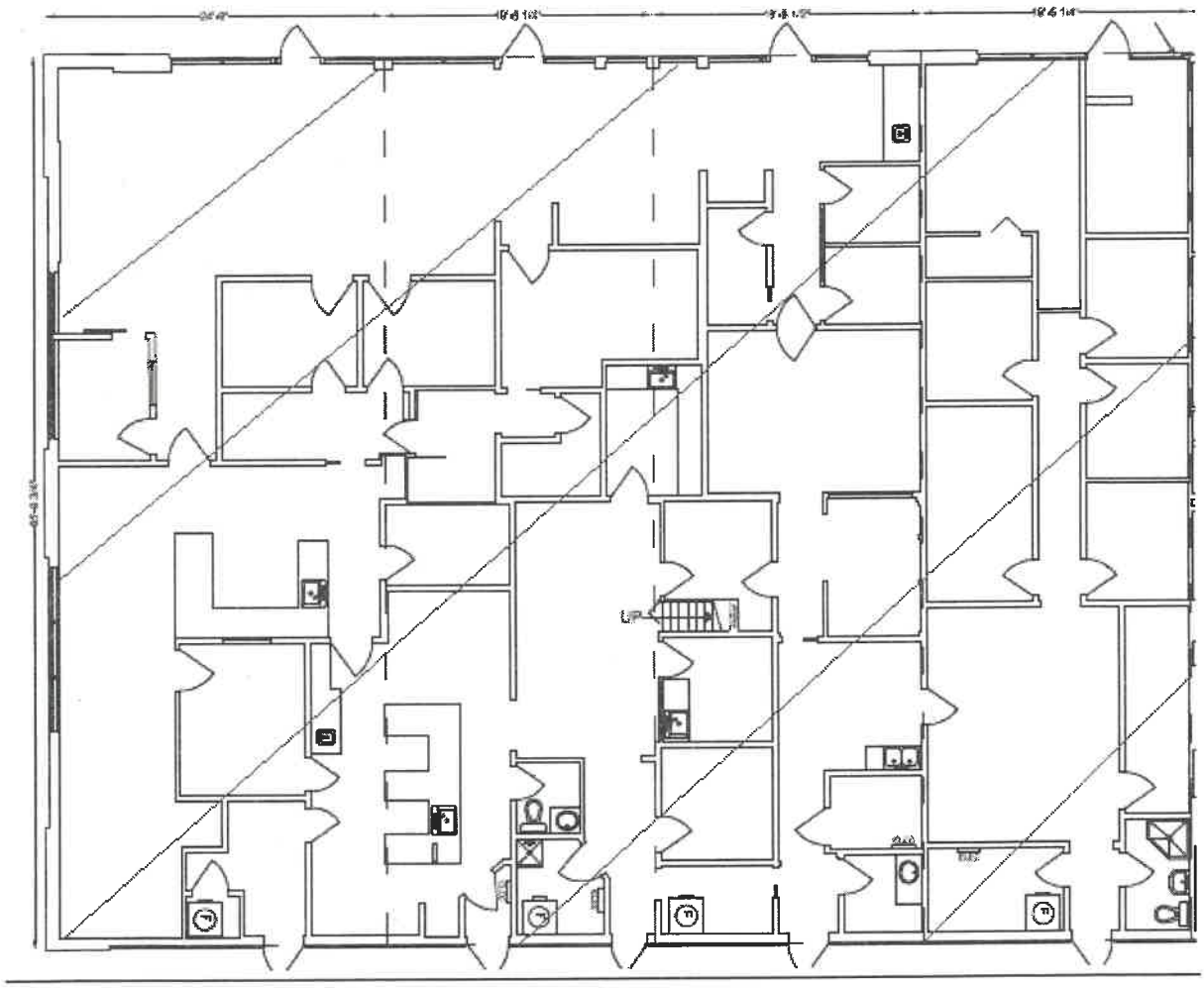
INITIALS	
LANDLORD	TENANT

SCHEDULE "B"

SITE PLAN OF SHOPPING CENTRE

SHOWING LEASED PREMISES CROSSHATCHED

1005 Tudor Glen	1004 Tudor Glen	1003 Tudor Glen	1002 Tudor Glen
1607 SQ.FT	1284 SQ.FT	1287 SQ.FT	1268 SQ.FT



INITIALS	
LANDLORD	TENANT

SCHEDULE "C"

RULES AND REGULATIONS

1. No Premises in the Shopping Centre shall be used for lodging or sleeping or for any immoral or illegal purpose.

2. No sign, advertisement, notice or other lettering shall be exhibited, inscribed, painted or affixed by any tenant on any part of the outside of the leased premises or the building in which the Leased Premises are located without the prior consent of the Landlord. In the event of the violation of the foregoing by any tenant, the Landlord may remove same without any liability, and may charge the expense of such removal to the tenant violating this rule. Provided however that upon the termination of the Lease to which these rules and regulations are attached, the Tenant will at the request of the Landlord remove any and all such signs and shall make good any damage occasioned by the installation and/or removal thereof.

3. The water and wash closets and other plumbing fixtures shall not be used for purposes other than those for which they were constructed, and no sweepings, rubbish, rags or other substances shall be thrown therein.

4. No Tenant shall mark, paint, drill into or in any way deface any part of the Leased Premises or the building in which the Leased Premises is situated. No barring, cutting or stringing of wires shall be permitted, except with the prior written consent of the Landlord and as the Landlord may direct.

5. No Tenant nor any of the Tenant's servants, employees, agents or representatives shall, at any time, be permitted on the roof, except with the prior written consent of the Landlord and as the Landlord may direct.

6. No Tenant nor any of the Tenant's servants, employees, agents, visitors or licensees shall at any time bring or keep upon the Leased Premises any inflammable, combustible, or explosive fluid, chemical or substance.

7. No loudspeaker, television, phonograph, radio or other device shall be used in the manner so as to be heard or seen as the case may be, outside the Leased Premises without the prior written consent of the Landlord.

8. No Tenants or their employees shall park their vehicles in any portion of the parking area, except such area designated for that purpose by the Landlord. Tenants or their employees shall refrain from parking near any potential hazardous zones in the parking lot, including but not limited to, construction sites or the threat of falling snow or ice or any other falling object from the roof or otherwise.

9. The Landlord may establish reasonable hours of operation for the Shopping Centre and all Tenants shall remain open for business during such hours.

INITIALS	
LANDLORD	TENANT

SCHEDULE "D"

SPECIAL PROVISIONS

1.Exclusivity

So long as:
(i) the Tenant and occupant of the Leased Premises is Clinic Solutions Inc.
(ii) the Tenant is not in default of its obligations under this Lease, and
(iii) the Tenant is carrying on business in the Leased Premises as set forth in this Lease, then the Landlord will not, during the Term of this Lease, lease space in Tudor Glen Place for the purpose of a veterinarian practice. If the Tenant has made three (3) or more late payments of Rent at any time during the Term, then from and after the date of such third late payment hereunder, this exclusivity will automatically be null and void.

2. Premises

It is agreed and understood the Leased Premises shall be provided on an "as is" basis or condition.

3.Electronic Funds Transfer

All payments of Rent shall be made by way of Electronic Funds Transfer ("EFT"), on the 1st of each month, by which payments are debited from the Tenant's bank account and credited to the Landlord's bank account, all at the Tenant's cost and all without prejudice to any other right or remedy of the Landlord. Tenant shall supply all information necessary to the Landlord at the Commencement of the Lease or earlier to assist the Landlord in the set-up of EFT. If the Tenant does not provide their EFT information, the Landlord may declare the Lease null and void.

INITIALS	
LANDLORD	TENANT